

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Starace	Team: Team # 1	CCRB Case #: 201000975	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 01/15/2010 4:45 PM	Location of Incident: 268 17th Street; 72nd Precinct station house	Precinct: 72	18 Mo. SOL 7/15/2011	EO SOL 7/15/2011	
Date/Time CV Reported Tue, 01/19/2010 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/22/2010 11:16 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			072 PCT
2. POM Victor Falcon	14750	936565	072 PCT
3. POM Anthony Massoni	19053	943534	072 PCT
4. POM Justin Cracchiola	09588	925131	072 PCT
5. SGT Ronald Perez	04220	930943	072 PCT
6. SGT Timothy Wilson	02898	924628	072 PCT
7. An officer			072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anibal Morales	25856	939069	072 PCT
2. POM Jose Barbosa	11938	934454	072 PCT
§ 87(2)(b)			
4. POM Sean Spencer	04482	929199	072 PCT
5. POM Michael Damico	19063	932511	072 PCT
6. POM Louis Basabe	10007	942980	072 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
7. SGT Esteban Alcaraz	01708	926486	072 PCT
8. POF Mairim Martinez	25835	937829	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)	
B.POM Anthony Massoni	Abuse: PO Anthony Massoni frisked § 87(2)(b)	
C. Officers	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b) and § 87(2)(b)	
D. An officer	Abuse: An officer searched § 87(2)(b)	
E.POM Justin Cracchiola	Force: PO Justin Cracchiola used a chokehold against § 87(2)(b)	
F.POM Justin Cracchiola	Force: PO Justin Cracchiola used physical force against § 87(2)(b)	
G.SGT Timothy Wilson	Discourtesy: Sgt Timothy Wilson spoke obscenely to § 87(2)(b)	
H.SGT Ronald Perez	Discourtesy: Sgt. Ronald Perez spoke obscenely to § 87(2)(b)	
I.SGT Ronald Perez	Force: Sgt. Ronald Perez used physical force against § 87(2)(b)	
J.POM Anthony Massoni	Force: PO Anthony Massoni used physical force against § 87(2)(b)	
K.POM Victor Falcon	Off. Language: PO Victor Falcon made remarks to § 87(2)(b) based upon race and gender.	
L.POM Victor Falcon	Force: PO Victor Falcon used physical force against § 87(2)(b)	

Case Summary

On January 17, 2010, § 87(2)(b) called IAB to file a complaint (log number 10-02772), which was then forwarded to the CCRB (IAB spin-off number 10-03056) on January 22, 2010 and assigned case number 201000975. On January 25, 2010, § 87(2)(b) called IAB to file a complaint (log number 10-04341) on behalf of her son, § 87(2)(b). That complaint was forwarded to the CCRB (IAB spin-off number 10-04872) on February 1, 2010,

§ 87(2)(g)

and incorporated into this case, CCRB case number 201000975.

On January 15, 2010, numerous males, including § 87(2)(b)

§ 87(2)(b) § 87(2)(b)

and § 87(2)(b) were at an unnamed park across the street from 268 17th Street in Brooklyn, when officers from the 72nd Precinct approached. The following allegations arose from the incident:

Allegation A – Force: Officers pointed their guns at § 87(2)(b)

and § 87(2)(b) § 87(2)(g)

Allegation B – Abuse of Authority: PO Anthony Massoni frisked § 87(2)(b)

§ 87(2)(g)

Allegation C – Abuse of Authority: Officers refused to provide their names and shield numbers to § 87(2)(b) and § 87(2)(b)

Allegation D – Abuse of Authority: An officer searched § 87(2)(b) § 87(2)(g)

Allegation E – Force: PO Justin Cracchiola used a chokehold against § 87(2)(b)

Allegation F – Force: PO Justin Cracchiola used physical force against § 87(2)(b)

Allegation G – Discourtesy: Sgt. Timothy Wilson spoke obscenely to § 87(2)(b)

§ 87(2)(g)

Allegation H – Discourtesy: Sgt. Ronald Perez spoke obscenely to § 87(2)(b) § 87(2)(g)

Allegation I – Force: Sgt. Ronald Perez used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation J – Force: PO Anthony Massoni used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation K – Offensive Language: PO Victor Falcon made remarks to § 87(2)(b) based upon race and gender. § 87(2)(g)

Allegation L – Force: PO Victor Falcon used physical force against § 87(2)(b) § 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is 5'9" tall and weighs 160 pounds. He has brown hair and brown eyes.

Interview Statement (encl. 10A-D)

§ 87(2)(b) was interviewed just outside the CCRB on March 4, 2010, by Inv. Eric Black, who was assigned to § 87(2)(b) case before it became combined with this case.

On January 15, 2010, at approximately 5:40 pm, § 87(2)(b) was at a basketball court on 17th Street between 5th and 6th Avenues in Brooklyn. There were approximately 20 other individuals at the location, though § 87(2)(b) did not know any of their government names aside from § 87(2)(b). § 87(2)(b) was holding a basketball when PO1 and PO2 arrived with their guns pointed at the crowd of individuals who were getting undressed. (The other individuals were changing into their basketball shorts and shirts to play basketball.)

PO1 had a gold badge. He was in plainclothes. He was a white male, very short, approximately 5'2", thin, 35 years old, and had combed-back orange /red hair, and has been identified through investigation as Sgt. Timothy Wilson of the 72nd Precinct.

PO2 had a gold badge. He was in plainclothes. He was white or Hispanic and was 6'1" tall, very thin, in his 40s, black hair. He has been identified as Sgt. Ronald Perez of the 72nd Precinct.

Sgt. Wilson and Sgt. Perez said, "Freeze! Get on your fucking knees!" Because § 87(2)(b) was not standing directly next to the crowd, he just dropped the basketball and put his hands in the air.

PO3 and PO4 arrived next, with their guns also pointed at the individuals.

PO3, who has been identified via investigation as PO Justin Cracchiola of the 72nd Precinct, was a bald white male with green eyes. He was wearing a Mets jacket. He was approximately 5'6"-7" tall and in his late 30s.

PO4 was in plainclothes. He was wearing a hat and was in his early or late twenties. PO4 was § 87(2)(b) arresting officer, PO Anthony Massoni of the 72nd Precinct. PO Massoni was 5'8" tall and weighed 160 pounds.

§ 87(2)(b) was initially allowed to leave the location because the officers thought he was not associated with the other individuals.

§ 87(2)(b) stood outside the park and observed. All of the officers were searching the civilians still in the park. To do this, the officers had everybody get on the ground, face-first. The officers then patted down the civilians and reached into their pockets and clothes and reached into their book bags. The officers threw the civilians' books out of their book bags and onto the ground.

PO Cracchiola thought that an individual, identified through investigation as § 87(2)(b) had swallowed something, so PO Cracchiola choked him. PO Cracchiola was choking § 87(2)(b) such that his face was red and he couldn't breathe. PO Cracchiola was doing this by placing his two hands around § 87(2)(b) neck and squeezing. § 87(2)(b) was on his knees with his hands in the air as this was taking place. PO Cracchiola then released § 87(2)(b) neck with one of his hands and punched § 87(2)(b) 2-3 times in the mouth with a closed fist.

As § 87(2)(b) was getting punched, § 87(2)(b) cousin, § 87(2)(b) arrived at the location. Several other officers had arrived by this time. PO5 was named Martinez, which § 87(2)(b) read off her uniform. The investigation identified her as PO Mairim Martinez of the 72nd Precinct. PO6 was named Morales, which § 87(2)(b) read off his uniform. The

investigation identified him as PO Anibal Morales of the 72nd Precinct. PO Morales did nothing other than drive in the van. PO7 was wearing an all-white uniform.

Sgt. Wilson and Sgt. Perez came up to § 87(2)(b) and asked him if he had anything at the location. § 87(2)(b) said he did and pointed to his bookbag and his coat, which were within the park. Sgt. Wilson and Sgt. Perez told § 87(2)(b) to go into the park. § 87(2)(b) went directly to his possessions, which were on top of a bench. Sgt. Perez followed § 87(2)(b) as he did this.

PO Martinez asked if anyone had searched § 87(2)(b) bookbag. § 87(2)(b) held up his bookbag and asked if the officers wanted to search it. Sgt. Perez was yelling, “I thought that wasn’t your fucking bookbag!” and was yelling such that spittle was hitting § 87(2)(b) in the face. § 87(2)(b) said, “Yo, son,” and was going to tell Sgt. Perez to stop spitting on him. Sgt. Perez backed up and all the plainclothes officers rushed towards § 87(2)(b) and grabbed him. § 87(2)(b) did not know which officer grabbed him first, but one officer put § 87(2)(b) in a bear-hug while another officer started punching him in his back and his ribs. § 87(2)(b) was allowing the officers to have his hands. Several officers then threw § 87(2)(b) to the ground. The officers were stepping on § 87(2)(b) head, an officer stepped on his back, and § 87(2)(b) was kicked in the left side of his head, two inches above his ear. As a result of this, § 87(2)(b) had a scrape directly below his right eye and scratches to the front of his right wrist. § 87(2)(b) was handcuffed. § 87(2)(b) requested the officers’ badge numbers. All the plainclothes officers took their badges and placed them inside their shirts.

§ 87(2)(b) uncle § 87(2)(b) and mother § 87(2)(b) arrived. Either Sgt. Perez or Sgt. Wilson told § 87(2)(b) uncle, “Get the fuck out of here, this is none of your business.”

At the 72nd Precinct station house, the other individuals in § 87(2)(b) cell were § 87(2)(b) and § 87(2)(b) knew them previously. § 87(2)(b) had been in the cell for approximately an hour when an officer whom § 87(2)(b) was told was named “Falcon,” and whom the investigation has identified as PO Victor Falcon of the 72nd Precinct, came into the cell and said, “I’m going to fuck up this nigger right here,” referring to § 87(2)(b). PO Falcon grabbed § 87(2)(b) and threw him against the wall of the cell and took out pink handcuffs and told § 87(2)(b) “I’m going to handcuff you in these pink handcuffs because you’re a bitch.” PO Massoni was near the fingerprint machines, and PO Barbosa was standing nearby -- both witnessed this. PO Falcon put handcuffs on one of § 87(2)(b) wrists and then pulled on his other arm in a way that § 87(2)(b) described as “attempting to break my arm.” Finally, PO Barbosa told PO Falcon to stop hurting § 87(2)(b) so PO Falcon handcuffed § 87(2)(b) other arm, tightened the handcuffs and then pushed § 87(2)(b) out of the cell and into a desk. As § 87(2)(b) attempted to get up from having gotten knocked into the desk, PO Falcon then grabbed § 87(2)(b) and threw him against a wall near a plastic window in the hall.

PO Falcon then left. PO Massoni also left and then PO Falcon came back in with PO Cracchiola. PO Falcon took § 87(2)(b) out of the handcuffs and then PO Cracchiola fingerprinted § 87(2)(b).

As PO Falcon was releasing § 87(2)(b) from handcuffs, he told § 87(2)(b) “My name is Spanky because I fuck up little niggers like you.”

The rest of § 87(2)(b) arrest was processed without incident.

Complainant/Victim: § 87(2) § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a 5'6" tall, 165 pound Hispanic male. He has brown hair and hazel eyes.

Interview Statement (encl. 14A-E)

The interview with § 87(2)(b) was conducted on April 15, 2010 at the CCRB.

§ 87(2)(g)

On January 15, 2010, § 87(2)(b) was in a park, playing basketball, at 268 17th Street in Brooklyn, ten to twelve of his friends were at the location.

Approximately seven plainclothes officers came into the park with their guns pointed at the civilians. PO1, who remains unidentified, was a bald white male in a Carhardt jacket and New Balance sneakers. PO1 was 5'8"-9" tall and was stocky. PO2 was identified via investigation as Sgt. Wilson. PO3 was identified via investigation as Sgt. Perez.

PO1 pointed his gun at § 87(2)(b) and ordered him to get against the gate. PO1 had also pointed his gun at others at the location. More officers had their guns pointed at civilians, but § 87(2)(b) was not sure which officers. § 87(2)(b) asked why the officers had stopped everybody. The officer said that the sign on the front of the park said it was unlawful to be in the park unless you were with a child under twelve.

§ 87(2)(b) put his hands up and turned, face-first against the gate. PO1 frisked and searched four other civilians who were to the right of § 87(2)(b) and against the fence. PO1 came to § 87(2)(b) and patted the exterior of § 87(2)(b)'s clothes from his shoulders down to his ankles. § 87(2)(b) asked PO1 for his name. PO1 said, "No."

PO1 told § 87(2)(b) to open his mouth and lift his tongue – § 87(2)(b) did so and PO1 looked inside. PO1 removed the objects from § 87(2)(b)'s pockets – a cell phone from his right-hand jacket pocket, keys from one of his rear pants pockets, and an ID in his right-front pants pocket. After PO1 removed the objects, he returned them. One or two other unspecified officers later searched § 87(2)(b) in the same manner, while § 87(2)(b) was still against the fence.

Several officers suspected that § 87(2)(b) had something in his mouth. § 87(2)(b) was handcuffed and placed face-first on the ground and then raised to his knees. The officers were insulting § 87(2)(b). Upon request, § 87(2)(b) opened his mouth. The officers looked in his mouth and then took him to the police van. § 87(2)(b) could not describe the officers involved.

Meanwhile, § 87(2)(b) was nearby. § 87(2)(b) had dropped the basketball when he saw the guns, but then he went and tried to retrieve his ball. Sgt. Perez and several other officers approached § 87(2)(b) who tried to explain that he hadn't done anything wrong and that he was just playing basketball. The officers weren't listening, so § 87(2)(b) said, "Listen!" Approximately 3-4 officers grabbed § 87(2)(b) and forcefully placed him face-first on the ground and handcuffed him. § 87(2)(b) could not be too specific about the force because § 87(2)(b) was still face-first against the fence as it took place.) § 87(2)(b) saw that § 87(2)(b) had scratches on his forehead and his right cheek, and perhaps somewhere on his arm, as § 87(2)(b) was being escorted to the prisoner van.

Victim: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a 5'10" tall, 160 pound Hispanic male. He has black hair and brown eyes.

Interview Statement (encl. 13A-D)

The interview with § 87(2)(b) was conducted on March 23, 2010 at 12:39 pm at § 87(2)(b) Riker's Island.

§ 87(2)(g)

First, he acknowledged that several of the individuals at the location were members of the § 87(2)(b) gang, although this gathering was unrelated to any gang affiliation.

Additionally, § 87(2)(b) claimed that PO1, who remains unidentified, had his gun drawn and pointed at the crowd. PO1 was a Hispanic male, 5'6" tall, in plainclothes, in his 20s or 30s. PO1 was moving his gun such that he was pointing it at one individual and then another. PO1 ordered the civilians on the ground by saying, "Get on the ground!"

Two other officers § 87(2)(b) did not remember which), also had their guns drawn, but these officers did not have their guns pointed. PO2, identified through investigation as PO Cracchiola, was yelling at § 87(2)(b) "You got something in your mouth! Take that shit out of your mouth!" § 87(2)(b) stated that he did not have anything in his mouth. PO Cracchiola then punched § 87(2)(b) in the face.

The officers then had all the civilians get off the ground and stand in a row against a fence. Then each civilian (including § 87(2)(b) was patted down by the officers, who patted from the civilians' chest area down to their ankles.

The officers had let § 87(2)(b) out of the park, but § 87(2)(b) told the officers that some of his possessions were still inside the park and he wanted to retrieve them. The officers told § 87(2)(b) that they were going to search his bag, which he had left in the park. PO3, identified via investigation as Sgt. Perez, pushed § 87(2)(b) and grabbed § 87(2)(b) by the arms.

PO4 and an unidentified officer then grabbed § 87(2)(b) body and threw him, face-first, to the ground. § 87(2)(b) had been trying to tell Sgt. Perez that he just wanted to get his bag and then he would leave. The officers accused § 87(2)(b) of confronting Sgt. Perez. PO4 was a chubby Hispanic male in plainclothes, whom § 87(2)(b) claimed was the same officer who later handcuffed § 87(2)(b) in the holding cells. The investigation has determined that § 87(2)(b) was therefore referring to PO Falcon.

In the station house, § 87(2)(b) was in the cell with § 87(2)(b) and § 87(2)(b) § 87(2)(b) had been asking for a cup of water and something to eat, and PO Falcon had been saying to him, "Stop bothering me! Stop bothering me!" PO Falcon then entered the cell and grabbed § 87(2)(b) and forcefully threw him face-first against the wall of the cell. PO Falcon handcuffed § 87(2)(b) with pink handcuffs that he had on his belt. PO Falcon was cursing at § 87(2)(b) but § 87(2)(b) could not remember what specifically PO Falcon said § 87(2)(b) was saying, "Let me go! I'm not doing anything!" After he handcuffed § 87(2)(b) PO Falcon pulled § 87(2)(b) hands all the way up, behind his back in order to cause him pain. PO Falcon held § 87(2)(b) in this position for approximately one minute.

§ 87(2)(b) was charged with § 87(2)(b).

Complainant/Witness: § 87(2)(b)

- § 87(2)(b) filed the § 87(2)(b) behalf of her son. She was § 87(2)(b) at the time of incident. She is a 5'4" tall, 160 pound Hispanic female with black hair and brown eyes.

Interview Statement (encl. 16A-D)

§ 87(2)(b) was interviewed at the CCRB on April 20, 2010, at 10:14 am.

On the date in question, § 87(2)(b) did not arrive at 268 17th Street until the conclusion of the incident. She did not see any physical contact between Members of Service and § 87(2)(b). However, she did witness Sgt. Wilson tell her nephew, § 87(2)(b) "What the fuck you doing here? Get out of here," to which § 87(2)(b) said, "I'm not doing anything. I'm just watching." Sgt. Wilson said, "Get the fuck out of here."

§ 87(2)(b) saw a bump above § 87(2)(b) right eyebrow and an abrasion on one of his cheeks.

§ 87(2)(b) also mentioned that Sgt. Perez observed that several people in the park were gang members, but she did not mention anybody displaying gang signs or otherwise broadcasting their gang affiliation.

Other Civilians Interviewed via Telephone

On March 12, 2010, the undersigned spoke with § 87(2)(b) § 87(2)(b) uncle) (encl. 12A). § 87(2)(b) arrived at 268 17th Street after all of the civilians were already under arrest. He claimed that an unidentified officer said to § 87(2)(b) "You fucking kid," but made no mention of any officers speaking discourteously to him personally.

On May 18, 2010, the undersigned spoke with § 87(2)(b) (encl. 15A) § 87(2)(b)

§ 87(2)(b) an unidentified officer slammed § 87(2)(b) § 87(2)(b)'s head against the pavement as § 87(2)(b) was arguing with the officers about the physical force used against § 87(2)(b). Ultimately, § 87(2)(b) declined participate in the investigation.

On August 10, 2010, the undersigned spoke with § 87(2)(b) who was in the 72nd Precinct station house holding cells at the same time as § 87(2)(b). However, according to § 87(2)(b) there were two holding cells, and he was not able to see the other cell from his position. § 87(2)(b) saw nothing unusual on the day in question.

On August 20, 2010, the undersigned spoke with § 87(2)(b) who was also in the holding cells at the same time as § 87(2)(b) § 87(2)(g)

Attempts to Contact Civilians

On March 16, 2010, the undersigned spoke with § 87(2)(b)'s mother, § 87(2)(b) § 87(2)(b), who stated that her son was being held in upstate New York, in a detention center in Delaware County. As a result, he was considered unavailable for the purposes of this investigation.

On March 29, 2010, § 87(2)(b) missed a scheduled appointment. He was subsequently unresponsive to the undersigned's request that he reschedule.

According to § 87(2)(b) § 87(2)(b) could only be reached via the cell phone of his girlfriend "§ 87(2)(b)". Several voicemail messages were left for him, and he left one voicemail message for the undersigned, but he was ultimately uncooperative. A working address could not be found for him.

On May 18, 2010, the undersigned and Inv. Inessa Abayev spoke to § 87(2)(b) over the phone. § 87(2)(b) hung up on the investigation and did not pick up the phone when he was called

back. § 87(2)(b) was contacted via telephone over five times and was sent two letters. He was ultimately uncooperative.

No full addresses or phone numbers could be found for § 87(2)(b) and § 87(2)(b). While a full address was ultimately found for § 87(2)(b) he did not respond to the undersigned's letters and no phone number could be found for him.

NYPD Statement(s):

Subject Officer: SGT. RONALD PEREZ

- *Sgt. Perez was § 87(2)(b) years old at the time of incident. He is a 6'3" tall, 195 pound Hispanic male. He has brown hair and brown eyes.*
- *Sgt. Perez worked from 12:00 pm to 8:57 pm on January 15, 2010. He was the Conditions supervisor. He was in plainclothes and was assigned to an unmarked, burgundy Ford 500 sedan, number § 87(2)(b). He was working with PO Sean Spencer and PO Michael Damico.*

Interview Statement (encl. 18D-G)

On May 13, 2010, Sgt. Ronald Perez was interviewed at the CCRB.

On January 15, 2010, at approximately 4:45 pm, PO Cracchiola and PO Massoni were driving eastbound on 17th Street when they observed a large group in the park across the street from 268 17th Street. PO Cracchiola and PO Massoni radioed Sgt. Perez to say that two males had closed the gate to the playground, and appeared to be standing guard outside the gate – PO Cracchiola and PO Massoni observed what they believed to be a gang meeting. The officers also stated that there was an overweight white male with a beard, who looked older than the others at the location. With him was a young (about 5 years old) white boy. The two appeared stranded inside the park.

Sgt. Perez, who had not seen any of this, called Sgt. Wilson and requested that Sgt. Wilson mobilize some more officers so that the group could break up the meeting without being as outnumbered as they were. Sgt. Wilson agreed and met Sgt. Perez with additional officers. The officers then drove towards the location and double parked just down the street from it. PO Cracchiola and PO Massoni got out of their vehicle and apprehended the two individuals standing guard at the gate.

Sgt. Perez and Sgt. Wilson entered the park with the other officers. Sgt. Perez and several other officers (Sgt. Perez could not specify whom) had their guns drawn as they approached the situation. Sgt. Perez did not have his gun pointed at any civilians, nor did he observe any other officers with their guns pointed at civilians.

As soon as the officers entered the location, the older white male and child ran out. Because they were not suspects in the case, none of the officers thought to stop the pair.

Sgt. Perez identified himself as a police officer. There were ten to twelve officers in the park, but they were still out-numbered. The officers ordered the people in the park to get on the ground and to show their hands. One of the males in the park attempted to punch PO Cracchiola. Sgt. Perez did not know which male attempted to punch PO Cracchiola. That male was placed under arrest.

Another individual was placed under arrest because he was observed by PO Cracchiola and PO Massoni smoking marijuana. Sgt. Perez did not know which male this was. This individual (identified via investigation as § 87(2)(b)) was also observed by PO Cracchiola and PO Massoni swallowing marijuana. No officer tried to prevent § 87(2)(b) from swallowing marijuana. No officer put their hand around § 87(2)(b) neck or tried to choke him. No officer punched § 87(2)(b) in the face.

Sgt. Perez explained that based on the officers' training and experience, weapons are often brought to gang meetings, and since the officers had just witnessed what they believed to be a

gang meeting, they thought it likely that the members would have weapons. Additionally, there were a lot of bags at the location and, as relayed to Sgt. Perez by the observation post, there was a lot of hand-to-hand motion between individuals in the park and some individuals were ducking behind hedges. Moreover, in previous interactions with the § 87(2)(b) the officers had found that § 87(2)(b) frequently carried firearms. Accordingly, the officers frisked all the individuals at the location.

Sgt. Perez personally frisked several individuals at the location, though he could not recall which. When individuals were arrested, those individuals were searched incident to lawful arrest.

An individual, identified through investigation as § 87(2)(b) had been “boisterous” during the stop, but he was not combative. Sgt. Perez later explained that § 87(2)(b) was disruptive in a way that was borderline Disorderly Conduct, but ultimately was not. However, § 87(2)(b) had settled down and been frisked by an unknown officer and seemed okay, when a man (identified through investigation as § 87(2)(b) arrived outside the park and told the officers that § 87(2)(b) was his nephew. § 87(2)(b) asked to speak to a supervisor. Sgt. Perez came over. § 87(2)(b) explained that § 87(2)(b) mother was in the area, and asked if he could call § 87(2)(b) mother and have her come to the location to talk to Sgt. Perez. Sgt. Perez agreed. § 87(2)(b) called § 87(2)(b) who then arrived at the location.

§ 87(2)(b) spoke with Sgt. Wilson and Sgt. Perez. Sgt. Perez decided that he would release § 87(2)(b) into the custody of his mother, since, up to this point, all § 87(2)(b) was guilty of was a violation. Sgt. Perez explained that the park was a playground set up for children, and that it was not intended for older kids to go to the location to hang out. As a result, the males were going to be issued summonses.

Sgt. Perez and Sgt. Wilson went back to the group inside the park and told § 87(2)(b) that his mother was at the location and that he would be released into her custody. A couple of other males at the location heard this and became upset because they also wanted to leave.

All of a sudden, § 87(2)(b) started making gang signs to the other members of the group, including § 87(2)(b)

§ 87(2)(b) also repeatedly shouted “§ 87(2)(b) which is a phrase used to indicate affiliation. § 87(2)(b) made another sign by § 87(2)(b)

Sgt. Perez told § 87(2)(b) to “knock it off.” The other males at the location were getting riled up. They were screaming “§ 87(2)(b) and “§ 87(2)(b) Sgt. Perez, who was three feet from § 87(2)(b) told § 87(2)(b) again, “Knock it off.” § 87(2)(b) looked at Sgt. Perez and said, “Get your fucking hand out of my face!” and lunged towards Sgt. Perez. Because Sgt. Perez is significantly bigger than § 87(2)(b) Sgt. Perez was able to grab § 87(2)(b) forearms, hold him still, do a leg sweep on him, and take him to the ground. PO Massoni then helped Sgt. Perez handcuff § 87(2)(b) and get him under control. No officers stepped on § 87(2)(b) head or back, nor did any officer kick § 87(2)(b) in the head.

A couple of other fights broke out. One male attempted to punch an officer, though Sgt. Perez could not describe this in detail. It was discovered that one of the males at the location had an open warrant. Sgt. Perez radioed for a prisoner van and transported all of the individuals who were under arrest back to the station house. All the individuals who remained calm at the location were issued Criminal Court Summonses for being in the park without a small child, and were told to go home.

Sgt. Perez did not recall § 87(2)(b) wanting to retrieve his bookbag. Sgt. Perez never told § 87(2)(b) “I thought that wasn’t your fucking bookbag.” § 87(2)(b) never asked the name or shield number of any officer. Sgt. Perez never placed his shield inside his shirt as response to being asked for his name or shield; the officers’ shields were visible the whole time.

Subject Officer: SGT. TIMOTHY WILSON

- Sgt. Wilson was § 87(2)(b) at the time of the incident. He is a 5'6" tall, 150 pound white male with blonde hair and hazel eyes.
- Sgt. Wilson worked from 3:00 pm to 11:44 pm on January 15, 2010. He was the Anti-Crime supervisor. He was in plainclothes and was assigned to an unmarked, maroon Ford Taurus, number § 87(2)(b). He was working with PO Basabe.

Interview Summary (encl. 19C-E)

On May 14, 2010, Sgt. Timothy Wilson was interviewed at the CCRB.

§ 87(2)(g)

§ 87(2)(b) Sgt. Wilson stated that PO Cracchiola witnessed a male at the location ingesting drugs. There was a struggle with this male (whom Sgt. Wilson could not describe, but the investigation has identified as § 87(2)(b) though Sgt. Wilson did not witness this struggle. Sgt. Wilson did not know if this male was punched in the face or choked.

Additionally, Sgt. Wilson stated that the officers did not believe § 87(2)(b) was involved with the meeting, so they were allowing § 87(2)(b) to leave the location. However, § 87(2)(b) went to retrieve his property from the benches in the park. § 87(2)(g)

§ 87(2)(b) Sgt. Wilson stated that the other civilians at the location were compliant with the officers' orders, but they were handcuffed anyway, in the interest of safety.

§ 87(2)(b) mother arrived at the location, though Sgt. Wilson was unsure when during the incident. Sgt. Wilson spoke with her briefly. He did not say or hear anything to the effect of "Get the fuck out of here. This is none of your business."

Subject Officer: PO JUSTIN CRACCHIOLA

- PO Cracchiola was § 87(2)(b) at the time of the incident. He is a 5'10" tall, 220 pound white male with brown hair (though mostly bald) and blue eyes.
- PO Cracchiola worked from 12:00 pm to 8:35 pm on January 15, 2010. He was part of the 72nd Precinct SNEU team. He was in plainclothes and was assigned to an unmarked vehicle. He was working with PO D'Amico.

Arrest Documents (encl. 21D-G)

PO Cracchiola was the arresting officer for two individuals, § 87(2)(b) and § 87(2)(b). The arrest narrative for each was identical: "At T/P/O was O/B in the playground area of a NYC park without a child. Deft was O/B gathering with a group of 20 gang members. Deft was O/B displaying gang signs in plain view of A/O." Both were charged with Unlawful Assembly, a Violation of a Local Law, and Disorderly Conduct. According to the Arrest Reports, no force was used against either individual.

Interview Statement (encl. 21H-J)

On June 18, 2010, PO Justin Cracchiola was interviewed at the CCRB.

On January 15, 2010, PO Cracchiola was conducting a SNEU operation when he observed a group of 30 males in a city park, despite there being a sign that no adults were supposed to be in the park unless accompanied by children. The males were wearing § 87(2)(b) and were showing gang signs. Two males had the gates to the park closed and were letting in additional gang members who were arriving.

§ 87(2)(g)

§ 87(2)(g)

the gang was nervous and a couple of the individuals turned their backs on the officers and began to walk away, towards the center of the park. The officers physically grabbed the individuals who were walking away, though once the individuals were physically grabbed, they became compliant and got against a wall in the park, with the other civilians who complied with the officers' initial orders to get against the wall.

All of the § 87(2)(b) were frisked. PO Massoni frisked § 87(2)(b) by patting the areas around his waistband and down the side of his leg. § 87(2)(b) was frisked because he was a gang member and therefore there was suspicion that he may have had a weapon – other officers in the 72nd Precinct had made arrests for § 87(2)(b) having weapons, and the § 87(2)(b) were known as a violent street gang. Additionally, the group as a whole had been acting nervously, including § 87(2)(b). § 87(2)(b) was one of the individuals who had initially attempted to walk away from the officers. PO Massoni acknowledged that he did not see any suspicious bulges on § 87(2)(b)'s person.

PO Massoni knew that at least PO Cracchiola, Sgt. Perez, and PO Spencer frisked other civilians, but acknowledged that he couldn't account for which officer frisked whom.

With regard to § 87(2)(b) he had left the park and was being cooperative. When § 87(2)(b) observed the members of the § 87(2)(b) being frisked, he began cursing and ran into the park. § 87(2)(b) approached Sgt. Perez and began yelling at him. Sgt. Perez warned § 87(2)(b) twice to calm down and relax. § 87(2)(b) stated to Sgt. Perez, "I'll fuck you up!" and chest-bumped Sgt. Perez. Sgt. Perez grabbed § 87(2)(b) on his arms and they began struggling.

PO Massoni, who had been frisking § 87(2)(b) at this time, ran and assisted Sgt. Perez. Both PO Massoni and Sgt. Perez took § 87(2)(b) to the ground by grabbing his arms and wrestling him to the ground. PO Massoni did not remember exactly how § 87(2)(b) landed, but he was either on his side or his chest when he was on the ground. On the ground, § 87(2)(b) was pulling his arms away and kicking his feet and screaming. PO Massoni was able to grab § 87(2)(b)'s arms. Sgt. Perez handed PO Massoni his handcuffs and PO Massoni handcuffed § 87(2)(b). Neither PO Massoni nor Sgt. Perez used any additional force in handcuffing § 87(2)(b). No other officers assisted PO Massoni and Sgt. Perez in subduing § 87(2)(b). PO Basabe was standing right next to the situation, to make sure § 87(2)(b) did not get away. No officer kicked § 87(2)(b) or stepped on his back or head.

An individual, identified through investigation as § 87(2)(b) was believed to have swallowed contraband. PO Massoni remembered hearing yelling and then turning around and seeing § 87(2)(b) in handcuffs. PO Cracchiola was the officer who placed § 87(2)(b) under arrest. PO Massoni did not see any civilians being choked or punched.

PO Massoni witnessed PO Falcon interact with § 87(2)(b) at the 72nd Precinct station house. § 87(2)(b) was being very unruly in his cell by screaming and yelling and mocking the officers who were coming in and out of the area. PO Falcon was ordered by the desk officer to come into the cells and take § 87(2)(b) out of his cell and have him placed in a separate cell.

PO Falcon entered intending to place § 87(2)(b) in handcuffs. PO Massoni did not recall if PO Falcon spoke with § 87(2)(b). When PO Falcon attempted to grab § 87(2)(b), § 87(2)(b) turned his body so he could not easily be grabbed. PO Falcon was using regular handcuffs. PO Massoni did not see PO Falcon using pink handcuffs and has never seen PO Falcon using pink handcuffs.

PO Falcon was able to grab § 87(2)(b)'s arms and turn § 87(2)(b)'s body such that he was placed face-first against the wall and then PO Falcon handcuffed him. PO Falcon did not pull up on § 87(2)(b)'s arms to cause § 87(2)(b) pain. Once § 87(2)(b) was handcuffed and led out of the cell, PO Massoni told PO Falcon that PO Massoni needed to fingerprint § 87(2)(b). § 87(2)(b) was uncuffed. While PO Massoni was fingerprinting him, § 87(2)(b) was compliant and did not appear to have any injuries. PO Massoni did not see § 87(2)(b) pushed

against a desk or a wall outside the cell. PO Falcon did not tell § 87(2)(b) “I’m going to fuck up this nigger right here,” nor “I’m going to handcuff you with these pink handcuffs because you’re a little bitch.”

Subject Officer: PO VICTOR FALCON

- PO Falcon was § 87(2)(b) at the time of the incident. He is a 5’10” tall, 225 pound Hispanic male with black hair and brown eyes.
- PO Falcon worked from 5:30 pm on January 15, 2010 to 2:05 am on January 16, 2010. He was part of the 72nd Precinct Anti-Crime team. He was in plainclothes and was working within the station house without a partner.

Interview Statement (encl. 24D-E)

On June 25, 2010, at 10:49 am, PO Victor Falcon was interviewed at the CCRB.

When PO Falcon arrived for his tour, there were already prisoners in the cells. § 87(2)(b) was yelling. The desk sergeant, Sgt. Esteban Alcaraz, told PO Falcon to take § 87(2)(b) out of his current cell and to place him in a different cell, by himself.

PO Falcon took out his handcuffs, which were pink. (PO Falcon said that he has pink handcuffs for two reasons: first, for “personal reasons” and second, because then he does not have any trouble with losing his handcuffs, since they are so distinctive.)

When § 87(2)(b) saw PO Falcon take out his pink handcuffs, § 87(2)(b) said, “Oh, look at this homo! Are you going to put bitch cuffs on me?”

PO Falcon said, “Hell, yes, I am. You’re acting up. You’re going to be taken out of the cells.”

§ 87(2)(b) said, “Fuck you. You’re not taking me out. My § 87(2)(b) a cop.”

PO Falcon said, “Too bad, you’re coming with me.”

PO Falcon entered the cells and told § 87(2)(b) to turn around, but he refused and kept his hands at his side. PO Falcon grabbed § 87(2)(b) arms, placed him face-first against the bars of the cell and handcuffed him. It took § 87(2)(b) approximately 30 seconds to get § 87(2)(b) arms behind his back. PO Falcon had to pull on one of § 87(2)(b) arms to get it behind his back because § 87(2)(b) was stiffening his arms, but once he finally got that arm behind his back, PO Falcon said, “You’re coming out!” in response to which § 87(2)(b) moved his other arm behind his back. § 87(2)(b) never expressed that he was in pain.

Once PO Falcon handcuffed § 87(2)(b) he was moved out of his cell and PO Massoni explained to PO Falcon that § 87(2)(b) needed to be fingerprinted. Sgt. Alcaraz said that was fine, and PO Falcon left the cell area.

§ 87(2)(b) was never pushed into a table. Once § 87(2)(b) left the cell, he never came in contact with any wall, nor was he pushed into a wall. PO Falcon did not say to § 87(2)(b) “I’m going to fuck up this nigger right here.” PO Falcon did not say to § 87(2)(b) “I’m going to handcuff you with these pink handcuffs because you’re a little bitch.”

PO Falcon was nick-named “Spanky” as a little kid. Since he grew up in the same neighborhood as where he works as a police officer, some people in the neighborhood still call him “Spanky.”

Other Officers Interviewed

PO Louis Basabe was interviewed on June 22, 2010 (encl. 22F-H). § 87(2)(g) PO Basabe stated that both PO Massoni and Sgt. Perez took § 87(2)(b) to the ground. PO Basabe also stated that he frisked five unidentified individuals because they were not following orders to keep their hands against a fence, but instead were placing their hands onto areas of their own person. Additionally, PO Basabe had no recollection of any civilians other than § 87(2)(b) being involved in an

altercation with officers. PO Basabe issued summonses to § 87(2)(b) and § 87(2)(b)

PO Sean Spencer was interviewed on July 9, 2010 (encl. 25D-E). § 87(2)(g) PO Spencer had no recollection of § 87(2)(b) being physically non-compliant with Sgt. Perez. Additionally, PO Spencer made no mention of several fights breaking out between officers and civilians as § 87(2)(b) was arrested.

Sgt. Esteban Alcaraz was interviewed on July 20, 2010 (encl. 27C-D). § 87(2)(g)

PO Jose Barbosa was interviewed on June 22, 2010 (encl. 23C-D). He was only peripherally involved in the incident, in that he drove the prisoner van. He did not witness any of the allegations.

PO Michael D'Amico was interviewed on July 20, 2010 (encl. 26C-D). Though he was listed on the roll call as being present for the incident, he had made four arrests earlier in the tour and thus was at the station house processing arrests during the incident.

NYPD Documents

§ 87(2)(b) Arrest Photograph (encl. 29A)

In this photograph, taken within 24 hours after § 87(2)(b) arrest, there is no visible injury on § 87(2)(b) face.

Summons/Arrest for Incident and Disposition (encl. 35A-G)

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)

Status of Civil Proceedings (encl. 36A)

- None of the victims or complainants has filed a Notice of Claim with the City of New York as of September 9, 2010, with regard to the incident.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- § 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)

Civilian(s) CCRB History (encl. 5A-D)

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b)

Subject Officer(s) CCRB History

- PO Massoni has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 4A).
- Sgt. Perez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 4B).
- PO Cracchiola has been a member of the service for ten years and there are four substantiated CCRB allegations against him. In case 200503450, he was substantiated for an improper stop, a refusal to provide his name and shield, and an improper search. In case 200712858, he was substantiated for refusing to provide a prisoner medical treatment (encl. 4C-D).
- Sgt. Wilson has been a member of the service for eleven years and there are no substantiated CCRB allegations against him (encl. 4E).
- PO Falcon has been a member of the service for five years. There are no substantiated CCRB allegations against him, § 87(2)(g), § 87(4-b)

Conclusion

Allegations Not Pleaded

All the civilians interviewed for the case stated that officers at the location frisked “everyone.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) alleged that an officer called § 87(2)(b) “You fucking kid.” However, § 87(2)(b) did not make this allegation § 87(2)(g)

§ 87(2)(b) alleged that an officer used force against § 87(2)(b) However, § 87(2)(b) did not make this allegation § 87(2)(g)

§ 87(2)(b) stated that either Sgt. Wilson or Sgt. Perez told § 87(2)(b) to “get the fuck out of here, this is none of your business.” § 87(2)(g) § 87(2)(b) did not make this allegation, § 87(2)(g)

§ 87(2)(b) stated that during the physical struggle, officers stepped on his head, an officer stepped on his back, and an officer kicked § 87(2)(b) in the left side of his head, two inches above his ear. § 87(2)(g)

§ 87(2)(b) claimed that while he was on the ground, in handcuffs, he requested at large to see all the officers’ badge numbers, and that all the plainclothes officers hid their badges § 87(2)(g)

§ 87(2)(b) claimed he was both frisk and searched. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Because no civilians other than § 87(2)(b) stated that an officer said, “Freeze, get on your fucking knees,” § 87(2)(g)

Identification of Subject Officer(s)

§ 87(2)(b) alleged that Sgt. Wilson and Sgt. Perez had their guns pointed at civilians. § 87(2)(b) alleged that, in addition to Sgt. Wilson and Sgt. Perez, an unidentified officer had his gun pointed at him. § 87(2)(b) alleged that an unidentified officer, distinct from the officer mentioned by § 87(2)(b) had his gun pointed, while according to § 87(2)(b) Sgt. Wilson and Sgt. Perez had their guns drawn, but not pointed. § 87(2)(g)

PO Massoni acknowledged frisking § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that a bald white male officer who was 5’8”-9” tall, stocky, and in a Carhardt jacket and New Balance sneakers frisked and searched him and refused to provide his name. The only officer at the location who was bald was PO Cracchiola. However, PO Cracchiola has been identified as the officer who was involved with § 87(2)(b) § 87(2)(b) witnessed the interaction between officers and § 87(2)(b) but did not identify the officer who had frisked and searched him as one of the officers who then arrested § 87(2)(b) Moreover, § 87(2)(b) stated that PO Cracchiola was wearing a Mets jacket. § 87(2)(g)

PO Cracchiola acknowledged physically arresting § 87(2)(b) after he swallowed marijuana.

§ 87(2)(g)

§ 87(2)(b) identified Sgt. Wilson by name as the officer who spoke discourteously to § 87(2)(b) § 87(2)(g)

Sgt. Perez acknowledged speaking with § 87(2)(b) § 87(2)(g)

Sgt. Perez also acknowledged subsequently using force against § 87(2)(b) § 87(2)(g)

PO Massoni acknowledged assisting Sgt. Perez in subduing § 87(2)(b) § 87(2)(g)

PO Falcon acknowledged entering § 87(2)(b) cell and handcuffing him. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: Officers pointed their guns at § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Allegation B – Abuse of Authority: PO Anthony Massoni frisked § 87(2)(b)

With regard to this allegation, PO Massoni claimed that the officers were breaking up a § 87(2)(b) gang meeting. A couple of the gang members turned their backs on the officers and began to walk away, towards the center of the park. The officers physically grabbed the individuals who were walking away, though once the individuals were physically grabbed, they became compliant and got against a wall.

§ 87(2)(b) was frisked because he was a gang member and therefore there was suspicion that he may have had a weapon – other officers in the 72nd Precinct had made arrests for § 87(2)(b) having weapons, and the § 87(2)(b) were known as a violent street gang. Additionally, § 87(2)(b) was one of the individuals who had initially attempted to walk away from the officers. PO Massoni acknowledged that he did not see any suspicious bulges on § 87(2)(b)'s person.

§ 87(2)(b) stated that several of the individuals at the location were members of the gang the § 87(2)(b) although this gathering was unrelated to any of the individuals' gang affiliation. When the officers arrived, § 87(2)(b) along with the other civilians, was ordered at gun point to get on the ground, which he did, and then was ordered to stand face-first against a wall, which he did. He was then frisked from his chest down to his ankles.

According to Criminal Procedure Law 140.50 (encl. 1A), when an individual is stopped that individual may only be frisked if the officer reasonably suspects that he or she is in danger because the individual is in possession of a weapon that could cause serious physical injury.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to Kamins' *New York Search and Seizure*, which cites *People v. Watson*, "the police officer must articulate specific inferences, drawn from the particular facts, which, in light of his experience, would cause a reasonably prudent man in such circumstances to harbor a rational belief of danger." (2.05[1], encl. 2A)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Abuse of Authority: Officers refused to provide their names and shield numbers to § 87(2)(b) and § 87(2)(b)

Allegation D – Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(g)

Allegation E – Force: PO Justin Cracchiola used a chokehold against § 87(2)(b)

Allegation F – Force: PO Justin Cracchiola used physical force against § 87(2)(b)

Allegation G – Discourtesy: Sgt. Timothy Wilson spoke obscenely to § 87(2)(b)

§ 87(2)(g)

Allegation H – Discourtesy: Sgt. Ronald Perez spoke obscenely to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Perez told him, “I thought that wasn’t your fucking bookbag!”

Sgt. Perez denied this allegation, as did the other officers interviewed.

None of the other civilians specifically corroborated this allegation, though § 87(2)(b) did confirm that § 87(2)(b) and some officers had a dispute over § 87(2)(b) bookbag.

§ 87(2)(g)

Allegation I – Force: Sgt. Ronald Perez used physical force against § 87(2)(b)

With regard to this allegation, § 87(2)(b) claimed that the use of force was precipitated by a verbal argument with Sgt. Perez, which led to Sgt. Perez grabbing him and trying to take him to the ground.

§ 87(2)(b) stated that § 87(2)(b) was taken to the ground by three or four officers without any provocation other than the aforementioned verbal argument. However, § 87(2)(b) acknowledged that he was face-first against a fence at the time, and so was not able to get a good view of the incident.

§ 87(2)(b) stated that Sgt. Perez pushed § 87(2)(b) and then an unidentified officer and PO Falcon grabbed § 87(2)(b) and threw him to the ground. However, § 87(2)(b) also acknowledged being face-first against a fence when this took place.

Sgt. Perez claimed that § 87(2)(b) lunged towards him. Sgt. Perez was able to grab § 87(2)(b) forearms, hold him still, do a leg sweep on him, and take him to the ground. PO Massoni stated that § 87(2)(b) stated to Sgt. Perez, “I’ll fuck you up!” and chest-bumped Sgt. Perez. Sgt. Perez grabbed § 87(2)(b) on his arms and they began struggling. § 87(2)(g)

The NYPD Patrol Guide, section 203-11 (encl. 3A-B), directs officers to use minimum necessary force when interacting with civilians.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation J – Force: PO Anthony Massoni used physical force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that one officer put him in a bear-hug while another officer started punching him in his back and his ribs. § 87(2)(b) was allowing the officers to have his hands. Several officers then threw § 87(2)(b) to the ground. The officers were stepping on § 87(2)(b) head, an officer stepped on his back, and § 87(2)(b) was kicked in the left side of his head, two inches above his ear. As a result of this, § 87(2)(b) had a scrape directly below his right eye and scratches to the front of his right wrist.

§ 87(2)(b) and § 87(2)(b) because of their poor view, could not give details about the force used against § 87(2)(b).

Sgt. Perez claimed he was able to grab § 87(2)(b) forearms, hold him still, do a leg sweep on him, and take him to the ground. PO Massoni then helped Sgt. Perez handcuff § 87(2)(b) and get him under control. No officers stepped on § 87(2)(b) head or back, nor did any officer kick § 87(2)(b) in the head.

PO Massoni stated that he and Sgt. Perez took § 87(2)(b) to the ground by grabbing his arms and wrestling him to the ground. PO Massoni did not remember exactly how § 87(2)(b) landed, but he was either on his side or his chest when he was on the ground. On the ground, § 87(2)(b) was pulling his arms away and kicking his feet and screaming. PO Massoni was able to grab § 87(2)(b) arms. Sgt. Perez handed PO Massoni his handcuffs and PO Massoni handcuffed § 87(2)(b). Neither PO Massoni nor Sgt. Perez used any additional force in handcuffing § 87(2)(b). No other officers assisted PO Massoni and Sgt. Perez in subduing § 87(2)(b). No officer kicked § 87(2)(b) or stepped on his back or head.

§ 87(2)(b) arrest photograph does not show any injuries to his face, though § 87(2)(b) and § 87(2)(b) claim that he had scratches on the right side of his face.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation K – Offensive Language: PO Victor Falcon made remarks to § 87(2)(b) based upon race and gender.

§ 87(2)(b) alleged that PO Falcon said, “I’m going to fuck up this nigger right here,” “I’m going to handcuff you in these pink handcuffs because you’re a bitch,” and that PO Falcon told him, “My name is Spanky because I fuck up little niggers like you.”

§ 87(2)(b) stated that PO Falcon was cursing at § 87(2)(b) but could not remember what PO Falcon was specifically saying.

PO Falcon acknowledged possessing pink handcuffs and acknowledged having the nickname “Spanky,” but denied the allegations. PO Falcon denied using the word “nigger” and denied threatening to “fuck up” § 87(2)(b).

PO Falcon had an explanation for the allegation involving the pink handcuffs: When § 87(2)(b) saw PO Falcon take out his pink handcuffs, § 87(2)(b) said, “Oh, look at this homo! Are you going to put bitch cuffs on me?” PO Falcon said, “Hell, yes, I am. You’re acting up. You’re going to be taken out of the cells.”

With regard to this allegation, PO Massoni and Sgt. Alcaraz denied hearing PO Falcon using the language § 87(2)(b) alleged.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation L – Force: PO Victor Falcon used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Falcon grabbed him and threw him against the wall of the cell and, in the course of handcuffing him, “attempted to break my arm.” PO Falcon then pushed § 87(2)(b) out of the cell and into a desk. PO Falcon then grabbed § 87(2)(b) and threw him against a wall near a plastic window in the hall.

§ 87(2)(b) corroborated that PO Falcon placed § 87(2)(b) against the cell wall to handcuff him. However, § 87(2)(b) stated that PO Falcon lifted § 87(2)(b) arms to cause him pain *after* § 87(2)(b) was handcuffed. § 87(2)(b) did not corroborate § 87(2)(b) assertion that he was pushed into a desk and that he was pushed against a wall in the hallway.

According to PO Falcon, he told § 87(2)(b) to turn around, but § 87(2)(b) refused and kept his hands at his side. PO Falcon grabbed § 87(2)(b) arms, placed him face-first against the bars of the cell and handcuffed him. PO Falcon had to pull on one of § 87(2)(b) arms to get it behind his back because § 87(2)(b) was stiffening his arms. After he was handcuffed, § 87(2)(b) was moved out of his cell and placed in PO Massoni’s custody.

PO Massoni and Sgt. Alcaraz corroborated PO Falcon’s statement.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Team: _____

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date